

Bhagwat Saran v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 29 September 2020 · Writ-C No. 14594 of 2020 · **Writ disposed; liberty to approach CGRF under clause 7.10.**

HEADNOTE

Writ petition disposed of on the conceded availability of the alternative remedy of a complaint before the Electricity Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, with liberty to the petitioner to take that route.

FACTUAL SUMMARY

Bhagwat Saran filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and four other respondents. Counsel appearing for the electricity respondents raised a preliminary objection that the petitioner had an alternative remedy of making a complaint before the Electricity Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. Learned counsel for the petitioner did not dispute that such an alternative remedy existed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — Consumer Grievance Redressal Forum

HOLDING

Where the petitioner has an undisputed alternative remedy of making a complaint before the Electricity Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, the writ petition is disposed of with liberty to take that remedy. ¶ 1

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10

The Court accepted the respondents' preliminary objection and relegated the petitioner to the clause 7.10 CGRF complaint, after the petitioner did not dispute that the forum remedy existed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The Court did not examine the underlying dispute; disposal rested only on the conceded alternative remedy. ¶ 1